

1868

SCOTT v. STANSFIELD.

June 3.

*Slander—County Court Judge—Words spoken by, while sitting in capacity of Judge—Malice—Irrelevance.*

Plea, to a declaration for slander, that the defendant was a county court judge, and the words complained of were spoken by him in his capacity as such judge, while sitting in his court, and trying a cause in which the present plaintiff was defendant. Replication, that the said words were spoken falsely and maliciously, and without any reasonable, probable or justifiable cause, and without any foundation whatever, and not bonâ fide in the discharge of the defendant's duty as judge, and were wholly irrelevant in reference to the matter before him:—

*Held*, that the replication was bad, and the action not maintainable.

DECLARATION, for that the plaintiff carried on the business of an accountant and scrivener, and the defendant falsely and maliciously, and without reasonable or justifiable cause, and not on any justifiable occasion, spoke and published of the plaintiff, of and concerning him in relation to his said business and the carrying on and conducting thereof, the words following, that is to say: "You," meaning the plaintiff, "are a harpy, preying on the vitals of the poor."

2nd plea: that before and at the time when the alleged grievance was committed, the defendant was the judge of a certain court of record, being the County Court of Yorkshire, holden at Huddersfield, and at the time when he did what was complained of, the defendant was sitting in the said court, and acting in his capacity as such judge as aforesaid, and was as such judge hearing and trying a cause in which the now plaintiff was defendant, the hearing and determination of which was within the jurisdiction of the said court; and during the said trial the now defendant, in his capacity as such judge, did, as such judge sitting as aforesaid, speak and publish the said words of which the plaintiff complains, which is the supposed grievance above complained of.

Replication to the 2nd plea: that the said words so spoken and published by the defendant as aforesaid, were spoken falsely and maliciously, and without any reasonable, probable or justifiable cause, and without any foundation whatever, and not bonâ fide in discharge of his duty as judge as aforesaid, and were wholly uncalled for, immaterial, irrelevant, and impertinent, in reference to,